WEBSITE DEVELOPMENT AGREEMENT

This Website Development Agreement ("Agreement") is made as of September 23, 2026 by and between:

Developer:
Rus Miller
252 Hudson Avenue
Albany, New York 12210
United States
Phone: 718-909-0594
Email: lancemonotone@gmail.com

Client:
O/R Books
Attn: Colin Robinson
40 Ave C
New York, NY 10009
United States
Phone: 646-361-5435
Email: colin.robinson@orbooks.com
Website: https://orbooks.com

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1. Project Description

Developer will provide website development and related consulting services for **Client**'s existing BigCommerce storefront at orbooks.com (and **Client**'s BigCommerce staging storefront as needed). Work focuses on the custom Stencil theme, storefront presentation, and agreed technical improvements so the site remains maintainable and consistent with **Client**'s brand and publishing needs.

Work is tracked and scoped through written task briefs (including **Briefboard** or email), with estimates provided upon request.

2. Scope of Work

Developer will perform mutually agreed development and consulting work, which may include:

- Custom BigCommerce Stencil theme development and refinement (templates, styles, scripts).
- Design and UX fixes across storefront templates (product, category, CMS, listing, and related pages).
- Staging storefront setup, theme push/deploy assistance, and related BigCommerce configuration support within **Developer**'s technical scope.

- Investigation and remediation of storefront bugs or regressions caused by prior theme work, where agreed in writing.
- Brief written notes or staging review support tied to completed tasks, when included in the agreed scope for that task.

All work under this Agreement is billed hourly as described in Section 6.

3. Exclusions

The following are not included unless separately agreed in writing:

- Building a new website or migrating off BigCommerce.
- BigCommerce platform subscription, apps/extensions **Client** installs, payment gateways, shipping carriers, tax services, or other third-party store services.
- Ongoing catalog management as a primary service (bulk product data entry, merchandising strategy, or day-to-day product uploads), beyond limited technical assistance expressly agreed per task.
- Ongoing content creation, copywriting, photography, or marketing strategy.
- Legal advice (including font licensing or intellectual-property disputes with third parties).
- Guarantees regarding third-party enforcement actions, hosting uptime, or BigCommerce platform changes outside **Developer**'s control.

Any such work may be added later under a separate written agreement or as Additional Services.

4. Client Responsibilities

Client agrees to:

- Provide branding assets, content, credentials (as needed for staging/production work), and decisions required to complete agreed tasks.
- Ensure **Client** holds any required licenses for fonts, images, and other third-party assets used on the storefront (**Developer** does not supply or warrant **Client**'s font or media licenses).
- Review work on staging (or other agreed preview), provide feedback, and approve deliverables in a timely manner.
- Designate one primary point of contact for approvals and decisions (Colin Robinson, unless **Client** notifies **Developer** otherwise in writing).

Delays in providing content, access, or approvals may extend timelines and may result in additional billable time if **Developer** must rework or re-deploy because of late changes.

5. Third-Party Services and Costs

Client is responsible for all third-party services and fees, including but not limited to:

- BigCommerce plan and channel fees.
- Domain name registration and DNS.

- SSL (typically included with BigCommerce).
- Email, newsletter, analytics, CDN, or other tools **Client** uses with the storefront.
- Font licenses, stock media, and app/extension subscriptions.

Developer may recommend providers or approaches and assist with technical setup as agreed. **Client** will contract with and pay these providers directly. These costs are not included in **Developer**'s fees.

6. Fees, Payment, and Timeline

Hourly rate: 125 USD per hour.

Work under this Agreement is billed hourly against mutually agreed tasks and estimates. Estimates are good-faith projections, not fixed quotes, unless **Developer** explicitly states a fixed fee for a defined deliverable in writing.

Invoicing: Developer will invoice **Client** periodically. Payment must be received by **Developer** within 15 days of the invoice date. Payment via Zelle to lancemonotone@gmail.com is preferred; check is also acceptable (**Client** is responsible for mailing time so that payment arrives by the due date).

Past-due payments: Developer may pause work, withhold theme pushes to staging or production, and/or withhold deliverables if payments are past due.

Timeline: Individual tasks will include estimated effort and target dates where practical. Overall schedule depends on timely **Client** feedback, access, and payment. Timelines are estimates and may be adjusted by mutual agreement if delays occur outside **Developer**'s control.

7. Quarterly Maintenance (Optional)

Beginning when **Client** opts in in writing (email is sufficient), **Developer** will provide Quarterly Maintenance every three (3) months, unless either party terminates these services in writing. Unless **Client** opts in, there is no automatic maintenance retainer under this Agreement.

Quarterly Maintenance Fee: 300 USD per quarter, covering approximately two (2) hours of work per cycle.

Each Quarterly Maintenance cycle includes:

- Reviewing the storefront/theme environment as needed (where **Client**'s BigCommerce access allows).
- Applying agreed theme updates and related checks for basic functionality and security.
- Assisting with routine BigCommerce staging/production theme publishes for maintenance releases.
- Checking for issues and addressing problems that arise directly from these maintenance updates.
- Simple or minor content updates (such as updating text, icons, or images) within the approximate two-hour allowance.
- General availability during the cycle to answer questions and help **Client** strategize how best to use the site.

Client will be invoiced 300 USD at the beginning of each maintenance period; payment must be received within 15 days of the invoice date (same terms as Section 6).

Out of scope: Development, major technical additions, redesigns, catalog operations, or features requiring programming outside the routine scope above are billed separately at 125 USD per hour under Section 6 / Section 8. If such work is performed during a scheduled maintenance cycle, the 300 USD Quarterly Maintenance Fee for that cycle is credited toward the development charges for that work.

8. Additional Services

Work outside an approved task brief, or beyond any separately agreed maintenance arrangement, will be treated as Additional Services. This includes, for example:

- New features, templates, or pages not in the prior brief.
- Major design changes after **Client** approval of a direction or deliverable.
- Consulting beyond short handover/training for a completed task.
- Significant content entry, data migration, or catalog operations not described in the approved brief.
- Emergency or rush work outside normal scheduling, if **Developer** accepts it.

Additional Services are billed at the hourly rate in Section 6 (125 USD per hour), with **Client**'s prior approval (email approval is sufficient). **Developer** may provide estimates upon request; estimates are not fixed quotes unless explicitly stated as such.

9. Ownership and License

Upon receipt of payment for the applicable invoice(s), **Client** will own the final website content, page layouts, and custom theme code specifically created for **Client** under this Agreement for those paid deliverables, excluding:

- Third-party themes, libraries, frameworks, or BigCommerce platform code, which remain subject to their own licenses and terms.
- **Developer**'s underlying tools, processes, scripts, and know-how, which **Developer** may reuse.

Until payment is received for a deliverable, **Developer** retains ownership of that unpaid custom work and may withhold deployment or handover.

Developer retains the right to display the completed website and **Client**'s name and logo in **Developer**'s portfolio and marketing materials, unless **Client** objects in writing for a specific confidential project.

10. Training and Handover

Developer will provide reasonable training or written notes (as scoped per task) on how to review or operate relevant storefront changes. After handover of a completed task, routine content and catalog updates in BigCommerce admin remain **Client**'s responsibility, unless otherwise agreed as Additional Services.

11. Support and Warranty

For a period of 30 days after **Developer** delivers a completed task to **Client**'s agreed review environment (typically staging), **Developer** will correct bugs or errors in the implemented features for that task that are reported by **Client** and that are not caused by third-party changes, BigCommerce platform updates, hosting failures, **Client** or third-party modifications, or unpaid scope.

Ongoing support beyond this period is provided through Quarterly Maintenance (Section 7) and/or Additional Services (Section 8). **Developer** cannot guarantee uninterrupted or error-free operation due to hosting, internet, BigCommerce platform, or other third-party service issues.

12. Term and Termination

This Agreement begins on the Effective Date and continues until terminated by either party as provided herein, or until both parties agree in writing that the engagement is complete.

Either party may terminate this Agreement by written notice if the other party materially breaches its obligations and does not cure the breach within 15 days of written notice.

Either party may terminate this Agreement for convenience with 15 days' written notice.

- If **Client** terminates for convenience (i.e., without **Developer** breach):
  - **Client** will pay **Developer** for all work performed up to the termination date, including any approved Additional Services, at the rates in this Agreement.
  - Upon receipt of payment, **Developer** will deliver completed work to date in a reasonably usable format (e.g., theme files / repository access as applicable).

Prepaid amounts for work not yet performed, if any, will be handled as agreed in writing for that prepaid item. Amounts already earned for work performed are non-refundable.

13. Limitation of Liability

To the maximum extent permitted by law, **Developer**'s total liability under this Agreement, from any cause whatsoever and regardless of the form of action, is limited to the total fees paid by **Client** to **Developer** under this Agreement in the twelve (12) months preceding the claim.

Developer is not liable for any indirect, incidental, consequential, or special damages, including lost profits, lost sales, or loss of data, even if advised of the possibility of such damages.

14. Confidentiality

Both parties agree to keep confidential any non-public business, financial, or technical information obtained from the other party in connection with this Agreement and to use such information solely for purposes of performing their obligations hereunder.

15. General Provisions

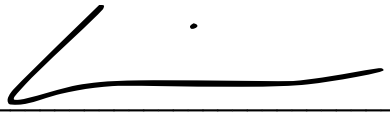
- This Agreement constitutes the entire agreement between the parties and supersedes all prior proposals or understandings regarding the subject matter.
- Any amendments or changes must be in writing and agreed by both parties (email is acceptable).
- Any disputes arising under this Agreement shall be brought exclusively in the state or federal courts located in the State of New York, and the parties hereby consent to the jurisdiction of such courts.
- If any provision is held unenforceable, the remaining provisions will remain in full force and effect.

16. Signatures

By signing below, the parties agree to be bound by the terms of this Agreement.

Developer

Name: Rus Miller

Signature: 

Date: 09/23/2026

Client

Organization: O/R Books

Name:_____

Title:_____

Signature:_____

Date:_____